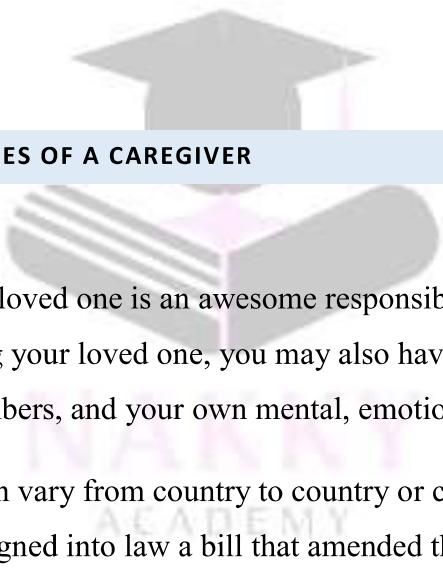


- Eating regular meals.
- Maintaining relationships and activities with other family members and your friends.
- Exercising.
- Doing things, you enjoy (hobbies, meals out, traveling).
- Getting therapy to talk about your experiences as a caregiver.
- Joining a caregiver support group.
- Arranging for respite care for a few days so you can take a more extended break.
- Caregiving can be a rich, rewarding experience that can also be stressful. Try to maintain a balance between your own needs and the needs of others. This helps keep you going.



LEGAL RIGHTS AND RESPONSIBILITIES OF A CAREGIVER

Acting as a caregiver to an elderly loved one is an awesome responsibility. Along with being responsible for obvious things such as assisting your loved one, you may also have other responsibilities, such as your regular job, other family members, and your own mental, emotional, physical, and financial health.

Legal rights of caregivers may even vary from country to country or city to city. For example, New York City's mayor, Bill Blasio, signed into law a bill that amended the New York City Human Rights Law in order to expand its protections to cover caregivers. Employees may now sue employers if the employees are discriminated against or otherwise not accommodated or given leave when they need to give care to a person covered by the law, including their own parents, grandparents, or other relatives, spouses, and others.

You should consult an attorney in your state or city to learn your exact rights in relation to your caregiving responsibilities. This study guide will focus on some of the general concepts of federal law related to a caregiver's legal rights in relation to the workplace.

A. Registration of care and support givers

- Any person who wishes to provide community-based programs for older persons must register with the relevant authority. It is an offence to render a community-based care and support service if you are not registered under the Act.
- Any person who provides home-based care must ensure that the caregivers receive training as prescribed by Regulation. It is an offence to fail to comply with this provision.
- All such caregivers (that is, social workers and health care providers) must be registered with the appropriate statutory council relevant to their particular profession. It is a criminal offence to contravene this provision.

B. Residential facilities

- It is an offence to operate a residential facility⁹ unless it has been registered with the Minister.
- Registration certificates may not be transferred to any other person, and it is an offence to do so (or attempt to do so).
- If a residential facility is closed down, or its registration has been cancelled, the operator thereof commits a criminal offence if he fails to take reasonable steps to ensure that the older persons concerned are accommodated either in other registered residential facilities, or with people who are (in the opinion of a social worker) fit and proper.
- It is a criminal offence to discriminate unfairly, or indirectly, against an older person applying for admission to a residential facility.
- If a person is refused admission, he can ask for written reasons. The manager commits an offence if he fails to do so.
- It is an offence to admit an older person to a residential facility without his consent.
- The Health or Social Work department can appoint social workers to carry out visits, investigations, interviews, etc. in regard to residential facilities. It is an offence to obstruct or hinder somebody in the performance of those functions, to refuse to give that appointed person access to an older person; or to fail to comply with a direction by that appointed person to produce a book or document for inspection.

C. Abuse of older persons

- It is an offence to abuse an older person. 'Abuse' includes physical, sexual, psychological or economic abuse occurring within any relationship where there is an expectation of trust – and is any of this conduct, or lack of appropriate action, which does (or is likely to) cause harm or distress to the older person.
- If you suspect that an older person has been abused, or suffers from an abuse-related injury, you must immediately notify the Health or Social Work Department, or a police official. It is an offence not to do so.
- A police official can, if he is satisfied that it will be in the best interests of an older person (or upon a report from a social worker), issue a notice to an alleged offender to leave the home or place where the older person lives. It is an offence not to comply with such a notice. It is also an offence to have contact with the older person concerned, in contravention of the written notice.
- A magistrate also can issue an order prohibiting the alleged offender from entering the home or place where the older person resides; or from having contact with the older person. He can set terms and conditions for visitation and/or contact; he can forbid the person concerned to accommodate or care for any older person; or he can authorize that person to give accommodation or care, but then under certain conditions. He can even order that maintenance be paid for the older person. It is an offence to contravene any such order.
- The public prosecutor can summons an alleged abuser to appear before a magistrate. For these purposes, he can also secure a warrant for a social worker to enter the place where the older person resides, in order to conduct investigation. Any person who obstructs or hinders a social worker in the performance of these functions commits an offence.
- It is an offence to refuse to furnish to a social worker, or a health care provider, any information in connection with the alleged abuse of an older person, which such officer requires for the purposes of an investigation.

- 1. Definition of Caregiving**
- 2. Types of caregivers**
- 3. Types of care giving facilities**
- 4. Caregiving qualifications**
- 5. Roles & Responsibilities of caregivers**
- 6. The caregiver-client relationship**
- 7. Professional boundaries**
- 8. Ways to improve caregiver patient relationship**
- 9. Self-care: The key to Maintaining caregiving relationship**
- 10. Legal rights and responsibilities of a caregiver**

